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# 12. RURAL ENVIRONMENT PROTECTION ZONE

## 12.1 GENERAL CONTROLS FOR THE WATER SUPPLY CATCHMENT ZONE LEP 2000 Cl 71



*Photograph - Suma Park Reservoir spillway*

### WATER-CATCHMENT CONSIDERATIONS

The Rural Environment Protection zone identifies water-supply catchment areas. The southern-most City boundaries, which resulted from amalgamations in 1977, broadly correspond with the watershed of the water-supply catchment for Orange - culminating at Suma Park Reservoir. The Molong water-supply area also intrudes within land along the western edge of Orange City. The water-supply catchment planning provisions apply to both the Orange Water Supply and Molong Water Supply Catchments, which are areas that provide for public water supplies to service urban centres.

The water-catchment planning provisions apply the precautionary principle of Ecologically Sustainable Development through a “prudent-avoidance” approach. This approach includes provisions to reduce the chance of serious environmental problems, even where it is not certain when or if such problems will occur.

Planning provisions for the water-supply catchments impose limits for the type of land uses, subdivision controls and performance measures to ensure adequate consideration is given to the potential impacts of development on the water quality and the environmental integrity of the catchments.

The interaction between development and water resources of water-supply catchments is recognised in the Zone Objective, which seeks to "manage development within those rural areas which comprise water-supply catchments in a way that conserves and enhances the City's and district's [Molong] water resources…".

The following types of development in water catchments require special consideration:

*Agriculture*

Although agriculture, which includes viticulture (vineyards) and horticulture (orchards), may be carried out without consent in the water-catchment area, the development must still be carried out in a manner that does not adversely affect the environment through off-site impacts. Runoff needs to be managed to ensure that nutrients, agricultural chemicals or silt does not enter waterways. The *Protection of the Environment Operations Act* applies to the control of off-site emissions, including water pollutants via runoff.

Council encourages sustainable-farming practices in the City, with particular emphasis in the Catchment. Buffer areas and native plantation strips adjacent to waterways should be established. These considerations need to be included in farm-management plans for Zone 7 land.

*Caravan Parks*

Caravan parks are restricted to areas where public sewerage facilities are made available. Accordingly, such development needs to be in proximity to urban areas and in an area where sewerage facilities and associated water supplies are available or are planned to be provided.

## WATER QUALITY

Clause 8 of Orange LEP 2000 has particular relevance to development in Zone 7.

Clause 8 requires that consideration be given to the potential of development to impact on a number of environmental aspects including:

- water quality of waterbodies
- groundwater resources
- soil resources
- vegetation
- native flora and fauna.

Clause 8 also requires consideration of cumulative impacts.

All development in catchment areas must be able to demonstrate to the satisfaction of Council or other consent authority (for State Significant development) that the development will not adversely affect the condition and integrity of the water-supply catchment.

Applications must therefore indicate measures for ensuring on-site management of wastewater runoff to protect surface and groundwater resources in the catchment.

**PO 12.1-1 PLANNING OUTCOMES – GENERAL CONTROLS IN WATER SUPPLY CATCHMENTS**

1 Development proposals clearly demonstrate measures that are to be instituted to minimise impacts on the quality and availability of water resources for public water-supply use.

# 12.2 WATER QUALITY PROTECTION AREA
## LEP 2000 Cl 72

All development in the water-supply catchment needs to manage its impacts on the water resources of the area. Additional attention is given to development in proximity to the major creeks within the water-supply catchment.

Special protection areas have been identified around the Gosling Creek, Spring Creek and Suma Park reservoirs and main feeder creeks. These protection areas generally define Zone 7 land within 200 metres of a main creek or within 400 metres from a water-storage reservoir. These areas are hatched blue in the LEP map.

The water-quality-protection area applies to land adjacent to the following creeks:

- Brandy Creek
- Gosling Creek
- Spring Creek
- Fredericks Valley/Summer Hill Creeks above the Suma Park Reservoir

Development must not generate effluent or nutrients within this area, which may then enter the adjacent water body (creeks or reservoirs).

On-site sewage management systems are inappropriate within this area. Development may be considered where an on-site sewage management system is located outside the water-quality-protection area and where measures are incorporated into the development that ensure runoff from buildings and driveways does not contribute to pollution of the adjacent waterbodies.

Development within this area is also required to incorporate environmental-enhancement measures relating to the water body.

Measures that may be required include:

- streambank restoration and protection
- tree planting and/or retention
- runoff retention and control
- wetland retention and/or provision of artificial wetlands for removing nutrients

Development affecting the creeks may also require approval under the *Rivers and Foreshores Act* administered by the Department of Land and Water Conservation.

**PO 12.2-1 PLANNING OUTCOMES – WATER QUALITY PROTECTION AREAS**

1 Effluent is treated outside the defined protection area.
2 Adjacent waterways, including native riparian vegetation zones, are protected and conserved.
3 Soil and water-management measures are incorporated in the development.

# 12.3 SUBDIVISION AND HOUSING IN ZONE 7
## LEP 2000 Cl 73

Provisions applicable to the Rural 1(a) Zone also generally apply for subdivision and housing in the water-supply catchment.

Development for subdivision and housing in the water-supply catchment also needs to specifically consider the potential impact of the development on water resources.

Where land is dissected by the water-supply catchment boundary, development with an on-site sewage-management system must be located outside the water-supply catchment.

It is recognised that, in order to locate potentially-polluting development outside the water-supply catchment, internal accessways and utilities may be required. Nevertheless, this provision recognises the importance of minimising development pressures on water-supply catchments as the principal objective for development in water-supply catchments.

The following development must be located outside the water-supply catchment where the subject land is dissected by the catchment boundary:

- all forms of housing or accommodation to be serviced by an on-site sewage management system (ie, septic-tank system - including aerated systems, package treatment plants and the like)
- vacant concessional lots (ie, a concessional lot created for a future dwelling house)
- building envelope indicated on a plan of subdivision
- any other development that requires provision of an on-site sewage management system

| **PO 12.3-1 PLANNING OUTCOMES – HOUSING AND SUBDIVISION** | |
|---|---|
| 1 | The configuration of lots and house sites provide for development well removed from sensitive waterways. |
| 2 | Concessional lots and new houses on land traversed by the water-catchment boundary are located outside the water catchment. |
| 3 | Native vegetation is protected and reinstated along waterways. |
| 4 | Degraded areas and waterways are restored. |

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